

Plaintiff's objection to Defendants Reply Separate Statement is **sustained**.

Plaintiff's objection to the Declaration of Vicky Pham and exhibits thereto is **sustained**.

Defendants' objection to Plaintiff's Exhibit F is **sustained**.

2. 9:00 AM CASE NUMBER: C22-02814

CASE NAME: NA WANG VS. SETH WIENER

*HEARING ON MOTION IN RE: OF INTENTION TO MOVE TO VACATE SANCTIONS AND TO SET ASIDE THE DISMISSAL

FILED BY: WANG, NA

TENTATIVE RULING:

On December 19, 2025, the court granted Defendant Seth W. Weiner's Motion for Terminating Sanctions and ordered the case dismissed with prejudice.

Before the court is Plaintiff Na Wang's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions, filed May 11, 2026.

Plaintiff's Request for Judicial Notice filed May 11, 2026 is granted. Judicial notice is not necessary for the court to take notice of its own orders and of pleadings in the instant court file.

Defendant's Request for Judicial filed June 12, 2026 is also granted.

Plaintiff's motions fail to state grounds upon which the court can order relief.

Relief is unavailable under Code of Civil Procedure (CCP) § 437(b) for several reasons. First, Plaintiff did not file her motion until May 11, 2026 --four months and 22 days after the order dismissing the case with prejudice on December 29, 2026. Courts recognize that a delay exceeding three months is unreasonable where the litigant provides no evidence to justify the delay. (*Minick v. City of Petaluma* (2026) 3 Cal. App. 5th 15, 35. Here the Plaintiff offers no evidence justifying her delay in filing.

In addition, Plaintiff does not offer any excusable neglect, but instead re-asserts her failure to appear at a court-ordered deposition date as due to "equipment failure." Plaintiff's explanation was not found credible by the court at the December 19, 2025 hearing and in any event it has no bearing on why it took four months and 22 days to file her instant motion. Plaintiff's "equipment failure" argument does not constitute excusable neglect for filing the instant motions on May 11, 2026.

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section 663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: TO VACATE ORDER AND SANCTIONS
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 2 above.

4. 9:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
*HEARING ON MOTION IN RE: AS TO BRUCE GRIGGS FOR DEF GOLDEN GATE BELL AND
DIVERSIFIED RESTAURANT GROUP, LLC
FILED BY: GOLDEN GATE BELL, LLC.
TENTATIVE RULING:

Before the Court is an application by Texas attorney Bruce Griggs to be admitted to appear in this specific civil action *pro hac vice*. The application was originally filed